



U.S. Department of Justice

Bureau of Alcohol, Tobacco,
Firearms and Explosives



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Addendum to Task Force Agreements Pertaining to Body Worn Cameras

This addendum supplements the agreement between the Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF) and the partner agency establishing an ATF sponsored Task Force. Pursuant to the Bureau of Alcohol, Tobacco, Firearms and Explosives Task Force Officer Use of Body-Worn Camera (BWC) Policy, the partner agency has advised ATF that it will require its deputized officers participating in the Task Force to use Body Worn Cameras (BWCs). This addendum governs that use.

The parties hereby agree to the following:

- I. TFOs will adhere to ATF's Standard Operating Procedures for Task Force Officer Body Camera Program, and other applicable ATF policies and procedures.
- II. The partner agency confirms that prior to executing this agreement it has provided to ATF details regarding the BWC system and cameras, including the details of any system protections, and any state or local policies or laws applicable to the TFO's use of BWCs, including any retention policies as detailed in Attachment 1 – Agency Checklist.
- III. Use of BWCs During ATF Federal Task Force Operations:
 - A. Deputized Task Force Officers (TFO) through the Joint Law Enforcement Operations (JLEO) Program will be allowed to wear and activate their recording equipment with BWCs for the purposes of recording their actions only during:
 1. A planned attempt to serve an arrest warrant or other planned arrest; or
 2. The execution of a search warrant.
 - B. TFOs are authorized to activate their BWCs upon approaching a premises or a subject, and must deactivate their BWCs when the scene is secured as determined by the federal supervisor on the scene as designated by the ATF.

1. For purposes of this agreement, the term “secured” means that the scene is safe and under law enforcement control.
 2. In the event circumstances arise requiring additional law enforcement assistance to secure the scene, the TFO will end BWC recording when relieved from the scene by another law enforcement agency.
 3. If there are unanticipated interactions with the public or other exigent circumstances, such as contentious or violent interactions that could lead to the use of force, TFO’s will, if and when it is safe to do so, reactivate their BWC either before, during, or after a planned arrest or execution of a search or seizure warrant or order.
 4. For the execution of a search warrant, BWCs should not be used for searches of property lawfully in government custody or control, or a search to obtain digital or electronic records executed by a third party, such as an electronic service provider or custodian of electronic records.
- C. TFOs will follow the provisions set forth in this agreement for use of BWCs, and the provisions of this agreement will supersede any conflicting provision in the agency’s policy for TFOs while serving on the ATF Federal Task Force.
- D. TFOs may use BWCs in accordance with this policy anywhere they are authorized to act as a police or peace officer under state, local, territorial or tribal law.
- E. TFOs may use only agency-issued and agency-owned BWCs. TFOs will not be allowed to use any privately owned BWC or other recording device of any kind.
- F. In the event a TFO’s BWC is not working or inoperable due to a technical problem or cannot be used due to physical damage, and, in the judgement of the Task Force supervisor, delaying the operation to repair or obtain a replacement BWC is not practical or would impair the operation, the TFO may participate in the operation without using a BWC.
- G. Even when BWC use would be permissible in the circumstances set forth in Section III A above, TFOs are prohibited from recording:
1. Undercover personnel;
 2. Confidential informants or confidential sources;
 3. On-scene witness interviews prior to or after the operation;
 4. Personnel using specialized investigative techniques or equipment; or
 5. Actions by any non-law enforcement persons at the scene who are assisting law enforcement personnel prior to or after the operation.
- H. Even when BWC use would be permissible in the circumstances set forth in Section III A above, TFOs are prohibited from activating their BWC if in the judgment of the ATF the cases involve:

1. National security (including international and domestic terrorism investigations or cases involving classified information);
 2. Public corruption;
 3. Medical facilities; or
 5. Other sensitive investigations as determined by ATF.
- I. Even when BWC use would be permissible in the circumstances set forth in Section III A above, TFOs shall not use BWCs to record any activities related to:
1. Specialized or sensitive investigative techniques;
 2. In a sensitive area; or
 3. An undercover or covert status on behalf of the ATF Federal Task Force.
- IV. Partner Agency Internal Controls:
- A. Partner Agency Chief/Sheriff or a Departmental Designee will serve as a point-of- contact (POC) for ATF on BWC matters.
 - B. The partner agency will notify ATF of any change in state or local law that will modify how ATF TFOs must use BWCs or will affect release or redaction of BWC recordings from TFO BWCs made while working under federal authority on behalf of ATF (“TFO BWC recordings”), see Appendix A.
 - C. The partner agency will notify ATF of any change in agency policy that will affect the storage, release, or redaction of TFO BWC recordings.
 - D. The partner agency will familiarize ATF Task Force personnel on the BWCs, specifically concerning their capabilities and operation during task force activities.
- V. Handling of BWC Recordings Made During Task Force Operations:
- A. For purposes of this agreement, the term “TFO BWC recordings” refers to audio and video recordings, and associated metadata, from TFO BWCs made while the TFO is working under federal authority.
 - B. In accordance with current agency policy and practice, the partner agency will provide full, un-redacted copies of TFO BWC recordings to ATF within 72 hours unless approved in writing by the ATF SAC.
 - C. TFOs will document BWC use and the existence of BWC recordings in the Report of Investigation (ROI). The TFO will include in the ATF ROI a statement attesting that the data provided is a fair and accurate copy of the data recorded by the BWC.

D. All TFO BWC recordings made during ATF Federal Task Force operations, including such recordings retained by the the partner agency and/or in the possession of any third party engaged by the partner agency to store or process BWC recordings, shall be deemed federal records of the United States Department of Justice, Bureau of Alcohol, Tobacco, Firearms and Explosives (DOJ/ ATF) pursuant to the Federal Records Act.

E. Internal Dissemination:

The TFO's partner agency is authorized to use TFO BWC recordings for internal investigations of its personnel consistent with the partner agency's policies and procedures, not involving dissemination outside the partner agency or public release. The parent agency shall provide written notification to ATF prior to any internal review.

F. Expedited Public Release:

All TFO BWC recordings made during ATF Federal Task Force operations are federal records and shall be retained and disseminated in accordance with all applicable federal laws, policies and procedures including the Federal Records Act, Freedom of Information Act, and/or the Privacy Act. All TFO BWC recordings made during ATF Federal Task Force operations will be provided to ATF. The Department will work to expedite the public release of BWC recordings depicting conduct resulting in serious bodily injury or death of another consistent with DOJ policies and subject to any redactions as appropriate. If a TFO partner agency plans to release TFO BWC recording(s) from a BWC issued by the partner agency that depict conduct committed solely by a TFO resulting in serious bodily injury or death of another, the TFO's partner agency shall notify ATF, providing as much advance notice as possible as to the time and manner of its release. Following the notification, the TFO's partner agency may release such recording(s), subject to any redactions as appropriate.

If a TFO partner agency plans to release TFO BWC recording(s) from a BWC issued by the partner agency that depict conduct committed solely by an ATF agent resulting in serious bodily injury or death of another, the TFO's partner agency shall notify and coordinate the release with ATF, providing as much advance notice as possible as to the time and manner of its release. Following the notification, the TFO's partner agency may release such recording(s), subject to any redactions as appropriate.

G. In all circumstances, TFO BWC recordings shall be treated as law enforcement sensitive information, the premature disclosure of which could reasonably be expected to interfere with enforcement proceedings, and as potential evidence in a federal investigation, subject to applicable federal laws, rules, and policy concerning

disclosure or dissemination (including but not limited to 28 C.F.R. Ch. 1, Pt. 16, Subpart B, “Touhy”, absent appropriate redaction prior to disclosure or dissemination). Accordingly, these recordings are deemed privileged absent appropriate redaction prior to disclosure and may be entirely exempt from public release under federal laws, rules and policies.

- H. If a TFO BWC recording involves a use of force incident to include: a shooting incident, any incident involving serious bodily injury or death, or where any enforcement action by ATF resulted in the use of force or deadly force; physical assault or attempted physical assault on a Law Enforcement Officer; intentional damage to any facility, conveyance or any property owned by ATF, or involves another time-sensitive or urgent situation, the partner agency will provide ATF copies on an expedited basis, including during non-business hours. For purposes of this provision, use of force incidents include, but are not limited to, incidents utilizing intermediate weapons, i.e., TASERs, expandable batons, kinetic energy projectiles, emergency/improvised intermediate impact weapons, such as, a flashlight or radio; any use of force resulting in serious injury or death; canine bites resulting in penetration of human skin; and all shooting incidents.
- I. The partner agency will provide witnesses as needed to authenticate TFO recordings in ATF cases.
- J. The partner agency will inform ATF of the length of time TFO BWC recordings will be retained by the agency before deletion. The partner agency will honor any request by ATF to retain the TFO BWC recordings for a longer period of time.
- K. The partner agency will notify ATF immediately of any unauthorized access to TFO recordings discovered by the agency.
- L. The partner agency will cooperate fully with ATF in the investigation of any unauthorized access to or disclosure of TFO recordings, including providing ATF the name(s) of any agency personnel determined by the agency to be involved in unauthorized access, copying, or disclosure.
- M. The partner agency's failure to comply with any part of this addendum may result in immediate termination of the Task Force Memorandum of Understanding.
- N. The partner agency will notify ATF as soon as possible regarding any request or demand for release or disclosure of TFO recordings, including but not limited to subpoenas, discovery demands or motions, open record/freedom of information requests, media requests, or union or other professional association requests.

ATF and the partner agency agree to the provisions set forth in this agreement.

Printed Name of Special Agent in Charge

Signature of Special Agent in Charge

Date

Printed Name of Partner Agency
Representative and Name of Partner Agency

Signature of Partner Agency Representative Date

OR

Due to state and/or local law(s) requiring recording outside the parameters of this agreement, ATF and the partner agency agree to the provisions set forth in this agreement along with the revised language detailed in, *ATF TFO BWC MOU Addendum-Appendix A*.

Printed Name of Special Agent in Charge

Signature of Special Agent in Charge

Date

Printed Name of Partner Agency
Representative and Name of Partner Agency

Signature of Partner Agency Representative Date

Attachment: ATF TFO BWC MOU Addendum-Appendix A



Bureau of Alcohol, Tobacco, Firearms and Explosives

Body Worn Camera Program

TFO BWC MOU ADDENDUM

Appendix A

The following is controlling guidance for situations that may affect a Task Force (TF) partner agency regarding the TFO (Task Force Officer) BWC (Body Worn Camera) MOU (Memorandum of Understanding) Addendum. This guidance is issued by the Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF) Body Worn Camera Program (BWCP) and ATF Office of Chief Counsel (CC):

- **Review Boards/Other Public Dissemination:** If an agency is under a consent decree or otherwise required by statute, law, or agreement to disclose BWC footage to a review board, that entity and their access to the agency BWC and the qualifying events or incidents that are the subject of the agreement will be described in a letterhead memo that the ATF will keep in the BWC MOU tracking system. The memo should include the timeline for that board to receive the footage, if their access to an agency BWC Video Retention System is direct or indirect, and whether the review board has independent/unilateral public disclosure authority. This information will assist the ATF Chief Counsel in determining what timeline they may be under to perform agency review if a qualifying incident occurs where TFO and/or ATF BWC footage has been recorded.
- **State/Local Law(s):** If state law or statute requires recording outside the parameters of ATF TFO BWC MOU Addendum, the agency will provide that information and a copy of the legal justification to the ATF BWCP. Any recording of events outside of the TFO enforcement action (i.e., medical facilities, prisoner transport) should be separated if possible. This separation can be achieved by deactivating the recording of the TFO BWC prior to re-activation of recording upon the start of an ATF enforcement action, and/or deactivating the recording of the TFO BWC when a scene is concluded and secure. The TFO can then reactivate recording when the officer is operating under their agency policy alone for a non-TFO agency responsibility. When separate recording(s) are possible, ATF will receive only the enforcement BWC recording. If deactivation and reactivation of recording are not feasible or are not permitted by state law, the entire recording will be shared with ATF with the understanding that ATF will, if necessary, redact the entire portion of any recording that shows the TFO performing an agency duty where they are not operating under the ATF Task Force (TF) MOU parameters for enforcement actions. If a partner agency TFO BWC has the technical capability to apply a marker during a recording, the TFO will apply the marker at the beginning and end of the enforcement action, if feasible.
- **Short term operations:** Any TF partner agency not covered by an existing executed ATF TFO BWC MOU Addendum and any non-partner state, local, federal, or tribal agency are authorized to utilize their BWC during an ATF short term operation or ATF led national initiative after agreeing to share any BWC footage obtained during the operation with the ATF upon request. Any BWC footage of a critical incident such as an Officer Involved Shooting or other use of force leading to death will be shared as soon as possible after the incident. Other footage will only be requested if the ATF has a mission-related requirement that can only be supported by receipt of the BWC recording from the BWC agency.